

He failed to read that in order to present arguments he needed to advise the Court and Counsel by a certain time. (Mediano Decl., ¶16.)

The Court accepts the computer malfunction explanation and grants the motion to vacate the discovery order to the extent it/they compelled initial responses. There is no outstanding discovery at this time, and the delay was due to the malfunction. For the same reasons, the Opposition to the subject motions was not on file at the hearing. While this in itself is not counsel's fault, the defense should not have to bear the costs of filing motions due to the malfunction on software that Plaintiffs' counsel chose to use. As to timely requesting order argument, the Court's Department 5 Rules explicitly provide how and by when oral argument must be requested.

The motion is denied in part, granted in part. It is granted as to vacating the July 21 and 22, 2026 orders to the extent they compel discovery responses. It is denied as to vacating the sanctions.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 21, 2026, by 5:00 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

The court previously ordered Defendant to file the meet-and-confer declaration by 9/11/26, i.e., 10 days before the continued hearing on 9/21/26. Defendant failed to comply with that order. The demurrer should be overruled on this basis alone; however, even on the merits, the court overrules the demurrer.

Civil Code section 1793.22(e)(2) defines "new motor vehicle," i.e. "a new motor vehicle that is bought or used primarily for personal, family, or household purposes" or a "new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person" or a demonstrator or "other motor vehicle sold with a manufacturer's new car warranty."

In *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196, the Supreme Court held: "We conclude that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of "new motor vehicle" unless the new car warranty was issued with the sale." The Court stated that if the Legislature had intended to include used cars with unexpired new car warranties, it would have done so. (*Id.* at 199.) In reviewing the statutory scheme for Song-Beverly, the Court acknowledged consumer goods to mean any "new product or part thereof that

is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables. [Citing Civil Code § 1791(a).]” (*Id.* at 200.) “For consumer goods (i.e., new products) that are defective,” they are subject to express warranties under Civil Code section 1793.2(d)(1).” (*Ibid.*) There also implied warranty of merchantability (Civil Code § 1792) and implied warranty of fitness (Civil Code § 1792.1), in which a consumer may sue for breach of these warranties (Civil Code § 1791.1(d)). (*Id.* at 200.) The Court acknowledged the Act provided a distinct provision applying to used products under Civil Code section 1795.5(a) as long as an express warranty is given at the time of sale, while also providing for implied warranties of merchantability and fitness by the distributor or retailer seller under section 1795.5(c). (*Id.* at 200-201.)

In sum, *Rodriguez* establishes that a *used* vehicle does not become a “new motor vehicle” merely because it has warranty coverage at resale. Plaintiff therefore cannot premise a claim for new-motor-vehicle remedies under Civ. Code §1793.2(d) on the certified pre-owned (“CPO”) warranty alone.

However, the pled facts support a different theory. Civ. Code §1795.5 applies to a distributor or retail seller of used consumer goods in a sale accompanied by an express warranty. Plaintiff alleges Defendant issued the CPO warranty in connection with her CPO purchase and acted as a distributor. (Complaint, ¶¶ 8, 9, 17.) These allegations, accepted as true, would be sufficient to allege an express-warranty theory. (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339-40.) The same allegations, together with the timely alleged defects, would also support an implied-warranty theory under Civ. Code §1795.5(c) at the pleading stage.

Defendant’s authorities do not establish that both causes of action fail as a matter of law.

The demurrer is overruled.